

22. **Formalities to be compiled with before giving sanction to the opening of a railway** – (1) the Central Government shall, before giving its sanction to the opening of a railway under Sec. 21, obtain a report from the commissioner that –

- a) he has made a careful inspection of the railway and the rolling stock that may be used thereon ;
- b) the moving and fixed dimensions as laid down by the Central Government have not been infringed ;
- c) the structure of lines of rails, strength of bridges, general structural character of the works and size of, and maximum gross load upon, the axles of any rolling stock, comply with the requirements laid down by the Central Government ; and
- d) in his opinion , the railway can be opened for the public carriage of passengers without any danger to the public using it.

(2) if the Commissioner is of the opinion that the railway cannot be opened without any danger to the public using it, shall be, in his report, state the grounds therefore, as also the requirements which, in his opinion, are to be complied with before sanction is given by the Central Government.

- (4) The Central Government, after considering the report of the Commissioner, may sanction the opening of a railway under Sec.21 as such or subject to such conditions as may be considered necessary by it for the safety of the public.

Comments

Section 22 lays down the formalities to be complied with before sanction to the opening of a railway is given by the Central Government.

Shall – It is a well – known principle that in the interpretation of status that where the situation and the context warrants it, the word “shall” used in a section or rule of a status has to be constructed as “may”.

23. **Section 21 and 22 to apply to the opening of certain works** – The provision of Secs. 21 & 22 shall apply to the opening of the following works if they form part of, or are directly connected with, a railway used for the public carriage of passengers and have been constructed subsequent to the giving of a report by the Commissioner under Sec 22, namely :

- (a) opening of additional lines of railway and deviation lines;

- (b) opening of stations, junctions and level crossings;
- (c) re-modelling of yards and re-building of bridges;
- (d) introduction of electric traction ; and
- (e) any alteration or re-construction materially affecting the structural character of any work to which the provision of Secs. 21 and 22 apply or are extended by this section.

Comments

Section 23 lays down that the provisions of Secs. 21 & 22 shall apply to the opening of additional lines of railway, deviation lines, opening of stations, junctions, level crossings, introduction of electric traction, etc.

Preferential allotment Raks – In so far as the consideration of the committee concerned it appears that such constitution of such a committee had been accepted by all the parties appearing in this proceedings including the State authorities and/or Railway authorities. Accordingly the Court, directs that (i) a committee should be constituted consisting of the Secretary. Department of food and supply. Government of West Bengal, (ii) Assistant Director of Consumer Affairs, Government of West Bengal, (iii) Assistant Commissioner, Calcutta, and (iv) one representative of the Railway Board. The said Committee shall first consider the requirement of Salt district-wise on the basis of the basis of information or otherwise and accordingly, the rakes should be determined district-wise. Such determination will be made only on the basis of the need of a particular district so that the iodised salt may reach in that district for the consumers in question having regard with the object of giving [preferential treatment in the matter of allotment of rake for iodised salt and having regard to the very object for declaring entire state of West Bengal as *Goitre endemic area*.

24. Temporary suspension of traffic :- When an accident has occurs on a railway resulting in a temporary suspension of traffic, and either the original lines of rails and works have been restored to their original standard or a temporary diversions has been laid for the purpose of restoring communication, the original lines of rails and works so restored, or the temporary diversions, as the case may be may, without prior inspection by the commissioner, be opened for the public carriage of passengers, subject to the following conditions, namely:

- (a) the railway servant incharge of the works undertaken by reason of the accident has certified in writing that the opening of the restored lines of rails and works, or of the temporary diversion will not in his opinion be attended with danger tot the public: and